

24NWLC46935 24NWLC46935

County: los-angeles

Division: Civil Law and Motion

Department: 25

Hearing date: 2026-07-13

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Case Number: 24NWLC46935 Hearing Date: July 13, 2026 Dept: 25

**** UPDATED TENTATIVE RULING ****

HEARING DATE: Mon., July 13, 2026 JUDGE /DEPT: Eisenman/25

CASE NAME: Perrin Bernard Supowitz, LLC v. Hibachi Kings Group, Inc., et al.

COMPL. FILED: 10-25-24

CASE NUMBER: 24NWLC46935

NOTICE: OK

PROCEEDINGS: MOTION FOR TERMINATING SANCTIONS

MOVING PARTY: Plaintiff Perrin Bernard Supowitz, LLC

RESP. PARTY: None

MOTION FOR TERMINATING SANCTIONS

(CCP §§ 2023.030)

TENTATIVE RULING:

The Court GRANTS Perrin Bernard Supowitz, LLC's motion for terminating sanctions. The Court strikes Hibachi Kings Group, Inc. and Jose H. Moran's answer, and enters Default against the Defendants.

An Order to Show Cause Re: Entry of Default Judgment is set for AUGUST 13, 2026, at 9:30 a.m. in Department 25 of the Spring Street Courthouse.

The 09/23/2026 Non-Jury Trial is advanced to this date and hereby taken off calendar/vacated.

PBS is to give notice.

SERVICE:

[X] Proof of Service Timely Filed (CRC, rule 3.1300) OK

[X] Correct Address (CCP §§ 1013, 1013a) OK

[X] 16/21 Court Days Lapsed (CCP §§ 12c, 1005(b)) OK

OPPOSITION: None filed as of July 7, 2026 [] Late [X] None

REPLY: None filed as of July 7, 2026 [] Late [X] None

ANALYSIS:

Hibachi Kings Group, Inc. and Jose H. Moran failed to provide responses to Perrin Bernard Supowitz, LLC's discovery requests. Perrin moved to compel responses. This Court granted the motion and ordered the payment of monetary sanctions. Pursuant to that order, discovery responses were due, and sanctions were to be paid, within 30 days of notice of the Court's ruling. Perrin served notice of the ruling on February 2, 2026. As of now, neither Hibachi Kings nor Moran has complied with the Court's order. Perrin moves for terminating sanctions. The Court GRANTS the motion.

A court has the power to impose monetary, evidence, issue, or terminating sanctions on a party who fails to respond to discovery or fails to obey a court order to provide discovery. (Code Civ. Proc., § 2023.010, subds. (d), (g); id. § 2023.030, subds. (a)–(d).) Terminating sanctions are often appropriate only as a last resort, either when a party fails to respond to escalating measures of coerced compliance or when its discovery misconduct is so bad that lesser sanctions would have the Court and the party seeking discovery running a fool's errand. (*City of Los Angeles v. PricewaterhouseCoopers, LLP* (2024) 17 Cal.5th 46, 63; *Lopez v. Watchtower Bible & Tract Society of N.Y., Inc.* (2016) 246 Cal.App.4th 566, 604.)

In addition to failing to comply with the Court's previous order, neither Hibachi Kings nor Moran bothered to oppose Perrin's motion for terminating sanctions. There is no reason to keep a case on the Court's docket that a party has no interest in defending. The Court STRIKES Hibachi Kings and Moran's answer. They are now in default.

An Order to Show Cause Re: Entry of Default Judgment is set for AUGUST 13, 2026, at 9:30 a.m. in Department 25 of the Spring Street Courthouse.

The 09/23/2026 Non-Jury Trial is advanced to this date and hereby taken off calendar/vacated.

Perrin is to give notice.